

Unlock Advanced Research with

AI

Integrated with over 4 crore judgments and laws — designed for legal practitioners, researchers, students and institutions

Know your Kanoon

Doc Gen Hub

Counter Argument

Case Predict AI

Talk with IK Doc

...

Upgrade to Premium →

Select Language

RELATED U

intervenor"

[Cites 0, Cited by 0]

Supreme Court - Daily Orders

Shayara Bano vs Union Of India And Ors. Ministry Of Women ... on 22 August, 2017



CASE RECAST AI



TALK WITH IK DOC

ITEM NO.1501
(For Judgment)

COURT NO.1

SECTION X

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Writ Petition (Civil) No(s).118/2016

SHAYARA BANO

Petitioner(s)

VERSUS

UNION OF INDIA & ORS.

Respondent(s)

WITH
SMW(C) No.2/2015 (PIL-W)
W.P.(C) No.288/2016 (X)
W.P.(C) No.327/2016 (X)
W.P.(C) No.665/2016 (X)
W.P.(C) No.43/2017 (X)

Date : 22-08-2017 These matters were called on for pronouncements
of judgment today.

For Petitioner(s)/Applicant(s) :

UOI Mr. Tushar Mehta,ASG
Ms. Pinky Anand,ASG
Mr. Devashish Bharuka,Adv.
Ms. Madhvi Diwan,Adv.
Ms. Aishwarya Bhati,Adv.
For Mr. Mukesh Kumar Maroria,AOR
& Mr. Gurmeet Singh Makker,AOR

In WP(C) 118/2016 Mr. Amit Singh Chadha,Sr.Adv.
Mr. Balaji Srinivasan,AOR
Mr. Arunava Mukherjee,Adv.
Mr. Dilpreet Singh,Adv.
Mr. Abhishek Bharti,Adv.
Ms. Srishti Govil,Adv.
Ms. Vaishnavi Subrahmanyam,Adv.
Ms. Pratiksha Mishra,Adv.
Mr. Prashant Murthy,Adv.

In WP(C) 288/2016 Mr. Divyesh Pratap Singh,AOR

In WP(C)327/2016 Ms. Priya Hingorani,Adv.
Signature Not Verified Mr. Ashwani Upadhyaya,Adv.
Digitally signed by Mr. Balaji Srinivasa,AOR
Mr. Arunava Mukherjee,Adv.

SARITA PUROHIT
Date: 2017.08.22
17:02:38 IST
Reason:

1

In WP(C)665/2016 Mr. V.K. Biju,AOR
Ms. Ria Sachthey,Adv.
Mr. Himanshu Singh Yadav,Adv.
Ms. Nazia Ellahi Khan,Adv.
Ms. Hema Sahu,Adv.
Mr. Rakeesh Panicker,Adv.
Mr. Abhay Pratap Singh,Adv.
Mr. Subash Chandran,Adv.
Ms. Ansu,Adv.
Ms. Usha Nandini,Adv.
Mr. Rajesh Payannoor,Adv.
Mr. Nishad Livingston,Adv.

In WP(C)43/2017 Mr. Mukesh Jain,AOR

Applicant Ms. Farha Faiz,In-person



CASE RECAST AI



For Respondent(s) :

R8 in WP(C)118	Mr. Kapil Sibal,Sr.Adv.
R3 in SMW(C)2	Mr. Ejaz Maqbool,AOR
	Ms. Akriti Chaubey,Adv.
	Ms. Qurratulain,Adv.
	Mr. Zafar Khurshid,Adv.
	Ms. Sanchita Ain,Adv.
	Mr. Antony R. Julian,Adv.
	Ms. Azra Rehman,Adv.
	for M/s. Equity Lex Associates,AOR
R1 in SMW(C) 2	Mr. Raju Ramachandran,Sr.Adv.
& R9 in WP(C)	Mr. Ejaz Maqbool,AOR
118	Mr. Shahid Nadeem,Adv.
	Ms. Akriti Chaubey,Adv.
	Ms. Qurratulain,Adv.
	Ms. Mythili V.K. Thallam,Adv.
	Mr. Vikrani Aditya Narain,Adv.
	Mr. Ishwar Mohanty,Adv.
	Ms. H. Shanker,Adv.
	Mr. Purushottam Sharma Tripathi,Adv.
	Mr. Mihir Dev,Adv.
	Mr. Ravi Chandra Prakash,Adv.
	Ms. Radhika Saxena,Adv.
	Mr. Mukesh Kumar Singh,Adv.
	Mr. L. Nidhi Ram Sharma,Adv.
	Ms. Sushma Singh,Adv.
	2
Jamiat Ulama Hind	Mr. V. Giri,Sr.Adv.
	Mr. Shakil Ahmed Syed,Adv.
	Mr. Mohd. Parvez Dabas,Adv.
	Mr. Milan Laskar,Adv.
	Mr. Nomanul Haq,Adv.
	Mr. Manav Vohra,Adv.
	Ms. Svadha Shankar,Adv.
	Mr. Uzmi Jameel Husain,Adv.
No.10 in WP(C)	Mr. Anand Grover,Sr.Adv.
118	Mr. Waresha Farasat,Adv.
	Mr. Shadan Farasat,Adv.
	Ms. Tripti Tandon,Adv.
No.11 in WP(C)	Mr. Nitya Ramakrishna,Adv.
118	Mr. Shadan Farasat,AOR
	Ms. Warisha Farasat, Adv.
	Mr. Imtiaz Ahmed,Adv.
	Ms. Nagma Imtiaz,Adv.
	Mr. Ahmed Zargham,Adv.
	Ms. Amra Moosavi,Adv.
	Dr. Harsh Pathak,Adv.
	For M/s Equity Lex Associates,AOR
	Ms. Abha R. Sharma,AOR
Intervenor	Mr. Mohd. Nizam Pasha,Adv.
	Mr. Gautam Talukdar,AOR
	Mr. Rajesh Inamdar,Adv.
NCW	Ms. Aparna Bhat,AOR
	Ms. Joshita Pai,Adv.
	Mr. Nikhelesh Ramachandran,AOR
	Dr. Sumant Bharadwaj,Adv.
	Mr. Aviral Saxena,Adv.
	Mr. Ajmal Khan,Adv.
	Ms. Mridula Ray Bharadwaj,AOR
	Mr. M.M. Kashyap,AOR



CASE RECAST AI



Intervenor	Mr. Anis Ahmed Khan,AOR Mr. Mohd. Naved Mian,Adv. Mr. Sandeep Garausa,Adv. Mr. Vishwa Pal Singh,AOR
	3
R5 in WP(C) 118	Mr. Manoj Goel,Adv. Mr. Naman Kamboj,Adv. Mr. Wajeesh Shafiq,AOR Mr. Zulfiker Ali P.S.,AOR
R13 in SMW(C) 2	Mr. M.R. Shamshad,AOR Mr. Aditya Samaddar,Adv. Mr. Zaki Ahmad Khan,Adv. Mr. Jogy Scaria,AOR
R5 in WP(C) 288	Mr. Amit Dubey,Adv. Mr. Rajul Shrivastav,Adv. Mr. Rajneesh Chuni,Adv. Ms. D. Khanna,Adv. Mr. K. Krishna Kumar,AOR Mr. Preetam Shah,Adv. Mr. C. Rubavathi,Adv. Mr. B.S. Rajesh,Adv. Mr. Devesh Kr. Tripathi,Adv.
All India Muslim Women Personal Law Board	Ms. Babita Kumar,AOR Mr. Arun Kumar,Adv. Mr. Birendra Kumar Choudhary,Adv. Mr. Ajay Awasthi,Adv. Mr. Chirag Mr. Rajiv Kumar Sinha,Adv. For Mr. Nitin Kumar Thakur,AOR Mr. Md. Irshad Hanif,AOR Mr. Rajiv Kumar Sinha,Adv. Mr. Mohd. Adeel Siddiqui,Adv. Mr. Arif Ali,Adv. Mr. Neeraj Gupta,Adv. Mr. Muzahid Ahmed,Adv. Mr. E.C. Agrawala,AOR Mr. Arif Mohd. Khan,Adv. Mr. Aftab Ali Khan,Adv.
Impleading parties	Ms. Garima Bajaj,AOR Dr. Kailash Chand,AOR Mr. Gaurav Yadava,Adv.
	4
Intervenor	Mr. Debasis Misra,In-person Mr. O.P. Gaggar, AOR Mr. Ravindra Bana,AOR Ms. Rashmi Malhotra,AOR Ms. Liz Mathew,AOR Mr. R.P. Goyal,AOR Mr. V.K. Shukla, In person



CASE RECAST AI



UPON hearing the counsel the Court made the following
O R D E R

Hon'ble the Chief Justice of India pronounced a Reportable judgment and Hon'ble Mr. Justice S. Abdul Nazeer concurred with the view taken by the Hon'ble the Chief justice of India. All the writ petitions are disposed of in terms of the signed reportable judgment Hon'ble Mr. Justice Kurian Joseph expressed his opinion by pronouncing a separate reportable judgment.

Hon'ble Mr. Justice Rohinton Fali Nariman pronounced a separate reportable judgment and Hon'ble Mr. Justice Uday Umesh Lalit concurred with the view expressed by Hon'ble Mr. Justice Rohinton Fali Nariman.

In view of the different opinions recorded, by a majority of 3:2 the practice of 'talaq-e-biddat' – triple talaq is set aside, in terms of three signed reportable judgments.

(Sarita Purohit)
Court Master

(Renuka Sadana)
Assistant Registrar

(Signed three reportable judgments are placed on the file)



CASE RECAST AI

